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TENTATIVE RULING

Plaintiffs Rolf Martin Dreher and Eliane Borges Dreher's Motion for Leave Under CCP Sec 1995 and 1996 for a Court Order to Allow a Face-to-Face Deposition of Defendant Christopher Eugene Wiley, Who Is Incarcerated in County Jail is DENIED.

Defendants Christopher Eugene Wiley, Dondel, Inc. dba Angelenos Service and Transport, and Automobile Club of Southern California's Motion to Stay Civil Proceeding Until Resolution of Defendant Christopher Eugene Wiley's Criminal Trial is GRANTED in part. The proceedings against Defendant Christopher Eugene Wiley are STAYED until the resolution of the criminal proceedings against him, as are all other proceedings and matters that may be embraced by Wiley's prosecution. Plaintiffs Rolf Martin Dreher and Eliane Borges Dreher are permitted to propound discovery that does not relate to Wiley's prosecution in any way or does not seek to obtain privileged information.

Moving parties to give notice.

It is undisputed that Wiley is currently incarcerated and being criminally prosecuted in Los Angeles Superior Court Case No. 25ARCF01855-01 (People v. Wiley) for the same events underlying this civil action. Defense counsel represents that Wiley plans to assert his Fifth Amendment privilege against self-incrimination until after the conclusion of his criminal trial. (Mot. to Stay, Campo Decl. ¶ 6.) While Plaintiffs have an interest in moving forward with this action, this does not outweigh Wiley's Fifth Amendment rights, and any deposition would presumably yield little information while allowing for an adverse inference based on the invocation of the Fifth Amendment right against self-incrimination. The Court is not inclined to rely on Plaintiffs' counsel reference to ChatGPT results, as this Court does not consider ChatGPT to be a reliable source, such that Plaintiffs' arguments about the potential time it may take to bring this case to trial are speculative. The case upon which Plaintiffs rely, Fuller v. Superior Court (2001) 87 Cal.App.4th 299 is inapposite in that there was only a possibility of criminal prosecution there (see id. at p. 302), while Wiley is already facing criminal prosecution. For that reason, the Court finds it proper to stay the proceedings as to Wiley's deposition.

However, the Court is not convinced that all discovery in this case should be stayed. Plaintiffs should not be foreclosed from conducting discovery that is not embraced in any way by Wiley's potential deposition responses, i.e., Plaintiffs should be permitted to engage in certain discovery with Wiley's insurer, the manufacturer of the vehicle, and Wiley's employer insofar as Plaintiffs do not seek information that may be privileged. Accordingly, Plaintiffs Rolf Martin Dreher and Eliane Borges Dreher's Motion for Leave Under CCP Sec 1995 and 1996 for a Court Order to Allow a Face-to-Face Deposition of Defendant Christopher Eugene Wiley, Who Is Incarcerated in County Jail is DENIED. Defendants Christopher Eugene Wiley, Dondel, Inc. dba Angelenos Service and Transport, and Automobile Club of Southern California's Motion to Stay Civil Proceeding Until Resolution of Defendant Christopher Eugene Wiley's Criminal Trial is GRANTED in part. The proceedings against Defendant Christopher Eugene Wiley are STAYED until the resolution of the criminal proceedings against him, as are all other proceedings and matters that may be embraced by Wiley's prosecution. Plaintiffs Rolf Martin Dreher and Eliane Borges Dreher are permitted to propound discovery that does not relate to Wiley's prosecution in any way or does not seek to

obtain privileged information.